

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
WHITT CALDWELL,**Index No.**

Date Index No. Purchased:

Plaintiff,

-against-

Plaintiff designates NEW
YORK County as the place
of trial.THE CITY OF NEW YORK,
MICHAEL SCHEMMEL,
and JOHN DOES,The basis of venue is the
locus of the events in the
Complaint**SUMMONS**Defendants.
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To the above-named Defendant(s):

Please take notice that you are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
November 14, 2022

CYRUS JOUBIN, ESQ.
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New York, NY 10036
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Attorney for Whitt Caldwell

Defendants' address:

City of New York
c/o Corporation Counsel
100 Church Street
New York, NY 10007

Michael Schemmel, Shield # 8779
c/o NYPD 9th Precinct
321 East 5th Street
New York, NY 10003

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
WHITT CALDWELL,

Index No.

COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK,
MICHAEL SCHEMMEL,
and JOHN DOES,

Defendants.

-----X
Plaintiff Whitt Caldwell, by his attorney, Cyrus Joubin, complaining of the Defendants,
respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This action arises from various civil rights violations against Whitt Caldwell (“Mr. Caldwell” or “Plaintiff”) by New York City police officers. Plaintiff asserts claims for *inter alia* false arrest under New York State and New York City Law against the individual defendants, and against the City of New York under the doctrine of *respondeat superior*. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorney’s fees pursuant to applicable State and City laws.

VENUE AND JURISDICTION

2. Venue is proper in New York County Supreme Court pursuant to CPLR Section 503 because the acts complained of occurred in New York County, New York, and Plaintiff suffered damages that exceed the jurisdictional amount of all lower courts of the State of New York.

3. Plaintiff has complied with N.Y. General Municipal Law Section 50-E by serving a notice of claim upon the defendants. More than 30 days have elapsed since said claim was presented and the claim has not been satisfied. This action has been commenced within one year and ninety days after the occurrence of the event upon which the claims are based.

JURY DEMAND

4. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

5. At all times relevant herein, Plaintiff was a resident of the State of New York.

6. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York.

7. Defendant City of New York is authorized by law to maintain the NYPD, is ultimately responsible for the New York City Police Department ("NYPD"), and assumes the risks incidental to the maintenance of it and its employees.

8. The individually named defendants Michael Schemmel and John Does (collectively, the "individual defendants") are and were at all times relevant herein officers, employees and agents of the NYPD.

9. Each individual defendant is sued in his or her individual and official capacity. At all times mentioned herein, each individual defendant acted under the color of state law, in the capacity of an officer, employee, and agent of defendant City of New York ("Defendant City").

10. At all times relevant herein, the individual defendants were acting as duly appointed and acting NYPD officers, servants, employees, and agents of Defendant City;

for, on behalf of, and with the power and authority vested in them by Defendant City; and they were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

STATEMENT OF FACTS

11. On the morning of October 21, 2021, Mr. Caldwell attended a counseling session at Housing Works in the East Village of Manhattan, located at 749 East 9th Street.

12. After finishing his counseling sessions, Mr. Caldwell and his friend Eric Barnett boarded an MTA bus to go back home.

13. On the bus, Mr. Caldwell and Mr. Barnett heard a man known as “Black” talking about taking another person’s cell phone.

14. Mr. Caldwell, Mr. Barnett, and another woman on the bus told Black to return the phone.

15. Black refused to do so.

16. As a result, Mr. Barnett grabbed the phone out of Black’s hands.

17. Just then, the phone rang.

18. Mr. Caldwell answered the phone, and when the caller stated the phone’s owner was at Housing Works, Mr. Caldwell said he would immediately bring the phone there.

19. That is precisely what Mr. Caldwell did.

20. Mr. Caldwell got off the bus, boarded another bus heading back toward Housing Works, and met the phone’s owner – a woman named Latrece Blancette, a staff member of Housing Works.

21. Mr. Caldwell handed the phone back to Ms. Blancette and explained what had happened.

22. Despite the truth that Mr. Caldwell had acted as a Good Samaritan, and despite hearing this truth, Ms. Blancette was irrationally convinced that Mr. Caldwell had stolen her phone and called the police, pleading to get Mr. Caldwell's "ass locked up."

23. Innocent and open to explaining the truth to the police, Mr. Caldwell waited for the police to arrive.

24. When police officers – including PO Schemmel and John Does – arrived, they listened to Ms. Blancette's speculative, false, angry, and incoherent story about how Mr. Caldwell stole her phone.

25. At no point did Ms. Blancette or anyone else indicate that she observed Mr. Caldwell take her phone.

26. Mr. Caldwell truthfully, calmly, and coherently explained his side of the story.

27. Despite Mr. Caldwell's plausible and innocent explanation, the defendant officers arrested Mr. Caldwell and charged him with petit larceny.

28. In defiance of their duty to investigate, the officers did not check or request any surveillance video, nor did they both to speak with any witnesses who could have confirmed or denied Ms. Blancette's baseless, hostile, curse-laden accusations.

29. The defendant officers transported Mr. Caldwell to the 9th Precinct, where he was detained for approximately five hours before being issued a Desk Appearance Ticket that required him to appear in New York County Criminal Court.

30. On November 12, 2021, Mr. Caldwell appeared in Criminal Court (100 Centre Street) and was charged with petit larceny and criminal possession of stolen property, under Docket Number CR-026005-21NY.

31. That day, Mr. Caldwell resolved his prosecution by accepting an Adjournment in Contemplation of Dismissal.

32. All charges were ultimately dismissed and sealed.

DAMAGES

33. As a direct and proximate cause of the said acts of the Defendants, Plaintiff suffered the following injuries and damages in a sum exceeding the jurisdiction of all lower courts:

- a. Violation of his rights under the New York State Constitution;
- b. Violation of his rights under New York City law;
- c. Loss of liberty;
- d. Emotional distress, degradation, and suffering.

CAUSES OF ACTION

FIRST CLAIM

False Imprisonment under N.Y. State Law

34. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

35. The individual defendants intentionally arrested and detained Plaintiff without probable cause, without a warrant, and without privilege or consent.

36. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

SECOND CLAIM**Right of Security Against Unreasonable Search and Seizure and Excessive Force
Under New York City Administrative Code**

37. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

38. As detailed above, the individual defendants intentionally violated Plaintiff's right to be secure against unreasonable searches and seizures, in violation of New York City Administrative Code Title 8, Chapter 8: The Right of Security Against Unreasonable Search and Seizure and Against Excessive Force Regardless of Whether Such Force Is Used In Connection with a Search or Seizure. § 8-803 Civil action for deprivation of rights.

39. As a direct and proximate result, Plaintiff sustained the damages and injuries hereinbefore alleged.

THIRD CLAIM**Negligent Hiring/Training/Retention of Employment Services Under N.Y. State Law
Against Defendant City of New York**

40. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

41. Defendant City owed a duty of care to Plaintiff to prevent the violations sustained by Plaintiff.

42. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions. Defendant City knew or should have known through the

exercise of reasonable diligence that the individual defendants could potentially cause harm.

43. Defendant City's negligence in hiring, screening, training, disciplining and retaining the individual defendants proximately caused Plaintiff's injuries.

44. As a result of its negligent conduct, Defendant City has directly and proximately caused the damages and injuries hereinbefore alleged.

FOURTH CLAIM

***Respondeat Superior* Against Defendant City of New York**

45. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

46. Defendant City of New York employed all of the individual defendants at the time of the incident.

47. At the time of the incident, all of the individual defendants were acting in the scope of their employment with the City of New York.

48. During the commission of the incident in question, all of the individual defendants were working in furtherance of their employment with the City of New York.

49. Under the doctrine of *respondeat superior*, the City of New York is responsible for the wrongdoing of its employees acting within the scope of their employment.

50. The plaintiff is entitled to compensatory damages from the City of New York in an amount to be determined at trial, together with attorneys' fees and costs.

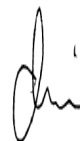
51. As a direct and proximate result of the acts of the New York City employees detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief against the Defendants:

- a. An order awarding compensatory damages for Plaintiff Whitt Caldwell in an amount to be determined at trial;
- b. An order awarding punitive damages in an amount to be determined at trial;
- c. A court order, pursuant to NYC Administrative Code Title 8, Chapter 8 (§ 8-805 Relief), that Plaintiff is entitled to reasonable attorney's fees and court costs;
- d. Such other and further relief as this Court deems appropriate.

DATED: New York, New York
November 14, 2022



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ATTORNEY'S VERIFICATION

I, Cyrus Joubin, the Plaintiff's attorney in this matter, hereby affirm this 14th day of November, 2022, under penalties of perjury, that the following is true: I am an attorney admitted to practice in the Courts of New York State, and I have read the annexed Complaint and know the contents thereof, and the same is true to my knowledge, except as to matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason I (rather than Plaintiff) make this verification is because Plaintiff does not reside in the county where the undersigned attorney has his office.



Cyrus Joubin